

based on lack of information or belief. Though there may be some ambiguity over the Defendant's intent because of the mere placement of this sentence in the form of the Answer, the court resolves any ambiguity in Defendant's favor.

Disposition

Plaintiff's Motion is denied.

The Court will file the Order.

**12. 9:00 AM CASE NUMBER: L25-12167
CASE NAME: NAVY FEDERAL CREDIT UNION VS. KHENDRIA WILLIAMS
HEARING ON SUMMARY MOTION MO FOR JUDGMENT ON THE PLEADINGS
FILED BY: NAVY FEDERAL CREDIT UNION**

TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings, as well as an accompanying Declaration. The Motion and Declaration were timely served by mail on the address for Defendant provided in the Answer.

The Motion is unopposed.

Background

Plaintiff's Motion argues that Defendant's Answer both admits salient facts and fails to offer any valid defense.

The Complaint, alleges a breach of contract, in that Defendant failed to repay a credit loan to Plaintiff, as of 6/26/25, in the amount of \$4,345.36. The agreement, attached to the Complaint, appears to reflect a credit card loan. The agreement reflects terms of acceptance, payment, and payment frequency, as well as consequences for nonpayment. The attachment also includes a document suggesting that the agreement terms were made to Defendant upon her application for the credit card.

The Complaint is a collections matter, under CRC 3.740, and is not verified.

Defendant, in the Answer, marks the box indicating that all statements in the Complaint are true. She writes, in Section 4, that she "admit[s] to settle for payment arrangement of amount owed." However, in Section 5, she also writes, "In denying the allegations of the complaint above, defendant denies not only the specific numbers and amounts alleged by the pleadings [sic]b but [illegible] number and amounts claimed."

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

If a material allegation of the complaint is not controverted by the answer, then it will be considered as true. *CCP 431.20(a)*.

When a collections case is not verified, “[A] general denial [of the allegations in a complaint] is sufficient but only puts in issue the material allegations of the complaint.” *CP 431.30(d)*. Moreover, a defendant may place her denial of the allegations in a complaint on the ground that she “has no information or belief upon the subject sufficient to enable him or her to answer an allegation of the complaint.” *CCP 431.30(e)*.

A court can grant a motion for judgment on the pleadings with leave to amend. *CCP 438(h)(1)*. The court must use the standards in deciding whether to granting to leave to amend as it would for a demurrer. *People v. \$20,000 U.S. Currency* (1991) 235 Cal.App.3d 682, 691 (“Because the motion [for judgment] is, in effect, a general demurrer, the same rules apply.”).

With respect to demurrers, courts are generally quite liberal in allowing amendment. When a demurrer is sustained, the court must determine if “there is a reasonable possibility that the defect can be cured by amendment.” *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. “Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.

In the instant matter, there is clearly some ambiguity in Defendant’s Answer. One can

argue that she is both admitting and denying the allegations. However, a reasonable inference is that Defendant may be admitting some allegations – such as the existence of an agreement – but not others – such as the particular amount she owes.

Either way, this court finds that there is at least a reasonable possibility that the defect of ambiguity can be cured through amendment.

Disposition

Plaintiff's Motion is Granted.

Defendant will have 10 days from notification of written notice of this Order to file an Amended Answer.

Plaintiff will file the Order and provide notice to the Defendant of the Order.

13. 9:00 AM CASE NUMBER: L25-14979
CASE NAME: MIDLAND CREDIT MANAGEMENT, INC. VS. JOLYNN PIAZZA
***HEARING ON MOTION IN RE: TO QUASH SERVICE OF SUMMONS**
FILED BY:
TENTATIVE RULING:

Defendant filed a Motion to Quash the Summons on 2/24/26, arguing invalid service.

A copy of the Motion was served on Plaintiff.

The original motion hearing was scheduled for 3/24/26, but then the court continued the hearing to 6/2/26, 9 am. The court provided mail notice of the 6/2/26 date to both parties.

The Motion is unopposed but that may be because default was entered on 3/26/26.

The court will address this Motion notwithstanding the entry of default.

Background

Defendant specifically claims that substitute service in this matter is invalid because it was served on her son, whom she claims is not a competent member of her household. She writes that he does not live with her. She does not provide any more detail. She does not dispute that her son received the documents. She does not dispute that she